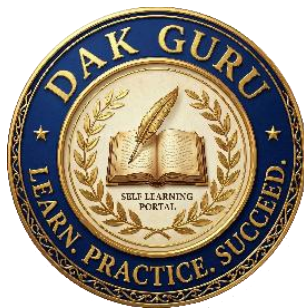




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RIGHT TO INFORMATION

Act, 2005 & Rules, 2012

Comprehensive Study Material for Departmental Examinations

LAW STATED AS ON JUNE 2026

Incorporating the RTI (Amendment) Act, 2019 & RTI Rules, 2019, and the DPDP Act, 2023 (Section 44(3)) in force from 14 November 2025

DISCLAIMER: *This booklet has been prepared strictly from an examination point of view. Every effort has been made to verify each provision against the latest in-force statutes, amendment Acts, rules, and official notifications current as on 24 June 2026, including the RTI (Amendment) Act, 2019, the RTI Rules, 2019, and the Digital Personal Data Protection Act, 2023. Statutory provisions are nonetheless subject to amendment, judicial interpretation, and pending litigation. This document is a study aid only and does not constitute legal advice. Readers must independently verify the current position against the Official Gazette, the bare Act on the DoPT / rti.gov.in portal, and authoritative government sources before relying on any provision.*

Contents

How to Use This Booklet

Snapshot: What Has Changed (and What Has Not)

Part A — The Right to Information Act, 2005

Chapter I — Preliminary (Sections 1–2)

Chapter II — Right to Information & Obligations of Public Authorities (Sections 3–11)

Chapter III — The Central Information Commission (Sections 12–14)

Chapter IV — The State Information Commission (Sections 15–17)

Chapter V — Powers, Appeal & Penalties (Sections 18–20)

Chapter VI — Miscellaneous (Sections 21–31)

Schedules to the Act (First & Second Schedule)

Part B — The Right to Information Rules, 2012

Rules 1–6 — Title, Definitions, Fees & Mode of Payment

Rules 7–14 — Appeal Procedure before the Commission

Service Conditions of Information Commissioners (RTI Rules, 2019)

Ready Reference

Key Statutory Timelines & Limits · Fees & Salaries · RTI Architecture · Sources

How to Use This Booklet

This booklet presents the **Right to Information Act, 2005** and the **Right to Information Rules, 2012** in a structured, examination-ready form. Each Chapter of the Act is reproduced section-by-section in plain language, followed by the operative Rules and Schedules. Key statutory timelines, fees, and monetary limits are consolidated into ready-reference tables at the end.

Three kinds of highlighted boxes appear throughout:

VERIFIED UPDATE

Marks a provision that has changed from the position commonly printed in older study material. The current, in-force position is stated, with the amending instrument and its effective date.

LEGISLATIVE NOTE

Adds context, cross-references, or an explanatory point that aids understanding but is not itself a change in the law.

EXAM POINTER

Flags a frequently-tested figure, distinction, or trap.

A word of caution on currency. Statutory figures (fees, salaries, timelines) and the membership of the Second Schedule are amended by notification from time to time. Wherever a value is liable to change, verify it against the Official Gazette or the bare Act on rti.gov.in before relying on it in service or in an answer.

Snapshot: What Has Changed (and What Has Not)

The substantive citizen-facing machinery of the RTI Act — the right under Section 3, the request procedure under Sections 6–7, the exemptions architecture, and the two-tier appeal ladder under Sections 19–20 — remains **unchanged** since 2005. Three developments, however, materially affect what older notes say:

1. **RTI (Amendment) Act, 2019 (Act No. 24 of 2019), in force 24 October 2019**, read with the **RTI (Term of Office, Salaries, Allowances ...) Rules, 2019** of the same date. These removed the tenure, age-ceiling, salary, and status provisions from the body of Sections 13, 15 and 16 and left them to be fixed by the Central Government by

rule. The result: a **fixed three-year term**, the earlier **65-year age ceiling and five-year ceiling removed**, salaries **fixed by rule** (no longer pegged to the Election Commissioners), and **one re-appointment** now permissible.

2. **Digital Personal Data Protection Act, 2023 — Section 44(3)**, brought into force (with the DPDP Rules, 2025) on **14 November 2025**. This **substituted clause (j) of Section 8(1)** of the RTI Act, deleting the internal “larger public interest” override and the Parliament proviso that previously sat inside that clause. The separate public-interest override in **Section 8(2) survives unchanged**. The amendment is under challenge before the Supreme Court; no stay has been granted.
3. **Second Schedule (exempt organisations) expansion**. The list notified under Section 24 has grown by successive Gazette notifications and now stands at **twenty-six Central organisations** (CBI, NIA and NATGRID were added in 2011; NCRB in 2018), replacing the shorter list printed in older material.

EXAM POINTER

Two figures examiners love to test on the back of the 2019 changes: the term is now **3 years** (not 5), and there is **no longer a 65-year age ceiling** prescribed by the Act. Citing “5 years or 65 years, whichever is earlier” as the current rule is the most common error.



Part A — The Right to Information Act, 2005

Act No. 22 of 2005. Passed by the Lok Sabha on 11 May 2005; assented to by the President on **15 June 2005**. An Act to provide for setting out the practical regime of the right to information for citizens to secure access to information under the control of public authorities, in order to promote transparency and accountability in the working of every public authority.

Chapter I — Preliminary

Section 1 — Short title, extent and commencement

- (1) This Act may be called the **Right to Information Act, 2005**.
- (2) It extends to the **whole of India**.

VERIFIED UPDATE

Older texts read “whole of India except the State of Jammu and Kashmir.” That exception ceased to operate on **31 October 2019**, when the Jammu and Kashmir Reorganisation Act, 2019 came into force and the erstwhile State was reorganised into the Union Territories of Jammu & Kashmir and Ladakh. The RTI Act now applies to the **whole of India** without exception.

- (3) The provisions of **Section 4(1), Section 5(1) and (2), Sections 12, 13, 15, 16, 24, 27 and 28** came into force at once (on enactment, 15 June 2005).
- (4) The **remaining provisions** came into force on the **120th day** of its enactment, i.e. **12 October 2005**.

LEGISLATIVE NOTE

The 120-day gap allowed public authorities to designate PIOs and put in place the proactive-disclosure framework before the request machinery went live.

Section 2 — Definitions

In this Act, unless the context otherwise requires, —

- **“Appropriate Government” [2(a)]** — in relation to a public authority established, owned, controlled or substantially financed by the Central Government or a Union Territory administration, means the **Central Government**; and in relation to one so connected with a State Government, means the **State Government**.

- **“Central Information Commission” [2(b)]** — the Commission constituted under **Section 12(1)**.
- **“Central Public Information Officer” [2(c)]** — the CPIO designated under **Section 5(1)**, and includes a **Central Assistant Public Information Officer** designated under **Section 5(2)**.
- **“Chief Information Commissioner” / “Information Commissioner” [2(d)]** — the persons appointed under **Section 12(3)**.

“Competent Authority” [2(e)] means —

- the **Speaker** (House of the People / State or UT Legislative Assembly) and the **Chairman** (Council of States / State Legislative Council);
- the **Chief Justice of India** for the Supreme Court;
- the **Chief Justice of the High Court** for a High Court;
- the **President** or the **Governor**, as the case may be, for other authorities created by or under the Constitution;
- the **Administrator** appointed under **Article 239** of the Constitution for a Union Territory.
- **“Information” [2(f)]** — any material in any form, including records, documents, memos, e-mails, opinions, advices, press releases, circulars, orders, logbooks, contracts, reports, papers, samples, models and data material held in any electronic form; and information relating to any **private body** that can be accessed by a public authority under any other law in force.
- **“Prescribed” [2(g)]** — prescribed by rules made under this Act by the appropriate Government or the competent authority.

“Public authority” [2(h)] means any authority, body or institution of self-government established or constituted —

- by or under the **Constitution**;
- by any law made by **Parliament** or by a **State Legislature**;
- by notification or order of the **appropriate Government**;
- and includes any body **owned, controlled or substantially financed**, and any **non-government organisation substantially financed**, directly or indirectly, by the appropriate Government.

“Record” [2(i)] includes any document, manuscript and file; any microfilm, microfiche and facsimile copy of a document; any reproduction of image(s) embodied in such microfilm; and any other material produced by a computer or any other device.

“Right to information” [2(j)] means the right to information accessible under this Act that is held by or under the control of any public authority, and includes the right to **inspection** of work, documents and records; taking **notes, extracts or certified copies**; taking **certified samples** of material; and obtaining information in the form of diskettes, floppies, tapes, video cassettes, any other electronic mode, or printouts where the information is stored electronically.

- **“State Information Commission” / officers [2(k)–(m)]** — the State Commission constituted under Section 15(1); and the State Chief Information Commissioner / State Information Commissioners appointed under Section 15(3); the **SPIO** designated under Section 5(1) including the **State Assistant PIO** under Section 5(2).
- **“Third party” [2(n)]** — a person other than the citizen making a request for information, and **includes a public authority**.

Chapter II — Right to Information and Obligations of Public Authorities

Section 3 — Right to information

Subject to the provisions of this Act, **all citizens** shall have the right to information.

EXAM POINTER

The right vests in **citizens** only — not in companies, associations or foreigners as such. In practice an application by a natural-person citizen on behalf of a body is entertained; a bare corporate applicant is not a “citizen.”

Section 4 — Obligations of public authorities (proactive / suo motu disclosure)

(1) Every public authority shall —

- **[4(1)(a)]** maintain all records duly **catalogued and indexed**, and progressively **computerise** and network them to facilitate access;
- **[4(1)(b)]** publish, **within 120 days** of enactment, seventeen categories of particulars — its organisation, functions and duties; powers and duties of officers and employees; the decision-making process and channels of supervision and accountability; norms for discharge of functions; rules, regulations, instructions, manuals and records held; a directory of officers and employees; the **monthly**

remuneration of each; the **budget** allocated, including plans and proposed expenditure and disbursement reports; the manner of execution of **subsidy programmes** and details of beneficiaries; particulars of recipients of concessions, permits or authorisations; details of information available in electronic form; facilities available to citizens for obtaining information; and the **names, designations and other particulars of the Public Information Officers;**

- **[4(1)(c)]** publish all relevant facts while formulating important policies or announcing decisions affecting the public;
- **[4(1)(d)]** provide reasons for its administrative or quasi-judicial decisions to affected persons.

(2) It shall be a constant endeavour to take steps under sub-section (1) so that the public has **minimum resort to use of this Act** to obtain information — i.e. to disclose **suo motu** at regular intervals through various means, including the internet.

(3)–(4) All disseminated material shall be **widely disseminated** and **easily accessible**, in local language and the most effective method of communication, and made available **free or at the cost of the medium / print cost**.

LEGISLATIVE NOTE

DoPT has, by successive office memoranda, expanded the suo motu agenda to include disclosure of **procurement** details, **PPP** information, **transfer policy and transfer orders**, **RTI applications received and their disposal**, **CAG & PAC paragraphs**, the **Citizen's Charter**, discretionary and non-discretionary **grants**, and **foreign tours of the Prime Minister / Ministers**. Each Ministry / public authority is advised to appoint a senior officer (not below **Joint Secretary**, or the equivalent / Additional HoD for attached offices) as the **Transparency / Nodal Officer** to drive compliance, and to undergo a periodic **transparency audit** of its proactive disclosures by a third party.

Section 5 — Designation of Public Information Officers

(1) Every public authority shall, **within 100 days** of enactment, designate as many officers as **Central / State Public Information Officers (CPIO / SPIO)** in all administrative units or offices as may be necessary.

(2) Every public authority shall also designate, at each **sub-divisional / sub-district** level, an officer as **Central / State Assistant Public Information Officer (CAPIO / SAPIO)** to **receive** applications and appeals and forward them forthwith to the CPIO/SPIO or the appellate authority / senior officer under Section 19(1).

(3) Where an application or appeal is given to a CAPIO / SAPIO, a period of **five days** is **added** to the time for response.

(4)–(5) A PIO may seek the assistance of any other officer (a “**deemed PIO**”), who is then subject to the same responsibilities as a PIO.

VERIFIED UPDATE

Mind the two different windows: PIOs are to be designated within **100 days** of enactment (Section 5), whereas the proactive-disclosure publication under Section 4(1)(b) is within **120 days**. Older notes sometimes swap these.

LEGISLATIVE NOTE

Standing DoPT guidance: an application **cannot be rejected** merely because it is not in a prescribed form; PIO/CAPIO details must be displayed on websites; and fee may be accepted by **cash against receipt, demand draft, banker’s cheque, Indian Postal Order, or online payment** to the Accounts Officer of the public authority.

Section 6 — Request for obtaining information

(1) A person seeking information shall make a request in **writing or through electronic means**, in **English, Hindi or the official language** of the area, accompanied by the prescribed fee, to the CPIO/SPIO or the CAPIO/SAPIO. Where the request cannot be made in writing, the PIO shall render reasonable assistance to reduce it to writing.

(2) The applicant **need not give any reason** for the request, nor any personal details **except those necessary for contacting** them.

(3) Where the information sought is held by or is more closely connected with the functions of **another public authority**, the request (or the relevant part) shall be **transferred** to that authority and the applicant informed; the transfer shall be made **as soon as practicable and in any case within five days**.

Section 7 — Disposal of request

(1) On receipt of a request, the PIO shall **as expeditiously as possible, and in any case within 30 days**, either provide the information on payment of fee, or reject it for reasons under Sections 8 or 9.

EXAM POINTER

Where the information sought concerns the **life or liberty of a person**, it must be provided within **48 hours** of receipt of the request. Add **five days** to the 30-day (or 48-hour) clock if the request was routed through a CAPIO/SAPIO.

- (2) Failure to decide within the time specified is a **deemed refusal**.
- (3) Where further fee is required, the PIO shall send an **intimation** with the calculation; the period between dispatch of intimation and payment is **excluded** from the 30-day computation.
- (4) The PIO shall provide assistance, including appropriate help for **sensorily disabled** persons, to enable access and inspection.
- (5) Information shall be provided in the form requested unless it would **disproportionately divert resources** or be **detrimental to the safety or preservation** of the record; charges for electronic / printed information are as prescribed.
- (6) **No fee** is chargeable from persons **Below Poverty Line (BPL)** as determined by the appropriate Government.
- (7) Where a public authority **fails to comply with the time limits**, the information shall be provided **free of charge**.
- (8) Before any decision, the representation of a **third party** under Section 11 must be considered.
- (9) On rejection, the PIO shall communicate the **reasons**, the **period** within which an appeal may be preferred, and the **particulars of the Appellate Authority**.

LEGISLATIVE NOTE

Numbering caution: the BPL exemption is in **Section 7(5)** of several official compilations and **7(6)** in others depending on edition; the “free where time limit breached” rule and the “form of information” rule likewise shift by one sub-section between prints. Cite the **substance** (BPL = no fee; delay = free) rather than relying on the sub-section number alone.

Section 8 — Exemption from disclosure of information

(1) Notwithstanding anything in this Act, there shall be **no obligation** to give any citizen

- (a) information whose disclosure would prejudicially affect the **sovereignty and integrity of India**, the security, strategic, scientific or economic interests of the State, relations with a foreign State, or lead to incitement of an offence;
- (b) information expressly forbidden to be published by any **court or tribunal**, or whose disclosure may constitute **contempt of court**;
- (c) information whose disclosure would cause a **breach of privilege** of Parliament or a State Legislature;
- (d) information including **commercial confidence, trade secrets or intellectual property**, the disclosure of which would harm the competitive position of a third party, unless larger public interest warrants disclosure;
- (e) information available to a person in his **fiduciary relationship**, unless larger public interest warrants disclosure;
- (f) information received in confidence from a **foreign Government**;
- (g) information whose disclosure would **endanger the life or physical safety** of any person, or identify a confidential source of information or assistance for law-enforcement / security purposes;
- (h) information that would **impede the process of investigation**, apprehension or prosecution of offenders;
- (i) **Cabinet papers**, including records of deliberations of the Council of Ministers, Secretaries and other officers (with a proviso for disclosure of decisions, reasons and material after the matter is complete or over);
- (j) information which relates to **personal information** — see the Verified Update below for the position after 14 November 2025.

VERIFIED UPDATE

Section 8(1)(j) as amended by Section 44(3) of the DPDP Act, 2023 (in force 14 November 2025). Clause (j) now reads, in substance, simply: “information which relates to personal information.”

The earlier clause (j) carried an **internal override** — personal information could still be disclosed where the PIO/appellate authority was satisfied that the **larger public interest**

justified it — followed by a **proviso** that information which cannot be denied to Parliament or a State Legislature shall not be denied to any person. **The 2023 amendment deletes that internal override and proviso.**

What survives: the **separate** public-interest override in **Section 8(2)** is untouched. A public authority may still allow access to otherwise-exempt information (including under clause (j)) where the **public interest in disclosure outweighs the harm** to the protected interest. So the override has moved location — from inside clause (j) to Section 8(2) — rather than vanishing altogether.

Status: the amendment has been challenged before the Supreme Court (petitions by Venkatesh Nayak; The Reporters' Collective; NCPRI). As of June 2026 the matter has been referred for detailed hearing and **no stay** has been granted; the amended clause is in force. Treat the position as current but contested.

Proviso to 8(1): information which cannot be denied to Parliament or a State Legislature shall not be denied to any person. (Note: the parallel proviso that previously sat **within** clause (j) has been removed by the 2023 amendment; this general proviso to sub-section (1) continues.)

(2) Notwithstanding the **Official Secrets Act, 1923** or any exemption under sub-section (1), a public authority **may allow access** to information if the **public interest in disclosure outweighs the harm** to the protected interests.⁵⁶

(3) Subject to clauses (a), (c) and (i) of sub-section (1), information relating to any event that occurred **20 years** before the request shall be provided; the Central Government's decision on computing the 20-year period is final.

LEGISLATIVE NOTE

Settled CIC / court practice: **Annual Confidential Reports / APARs** of an officer are ordinarily personal information, disclosable to the officer concerned but guarded as against third parties; **file notings** are “information” and disclosable, save where the noting itself attracts a Section 8 exemption. Post-2023, requests for the personal data of public servants will be tested first against the amended clause (j) and then, if pressed, against the Section 8(2) public-interest balance.

Section 9 — Grounds for rejection to access in certain cases

Without prejudice to Section 8, a PIO may reject a request where access would involve an **infringement of copyright** subsisting in a person **other than the State**.

Section 10 — Severability

(1) Where a record contains both exempt and non-exempt information, access shall be given to **that part which does not contain exempt information** and which can reasonably be severed.

(2) On granting partial access, the PIO shall notify the applicant: that only part is provided after severance; the **reasons** for the decision (including any findings on material questions of fact); the **name and designation** of the person giving the decision; the **fee** computed and the amount to be deposited; and the applicant's **right of review** of the decision on non-disclosure / fee, including appeal particulars.

Section 11 – Third-party information

(1) Where a PIO intends to disclose information that relates to, or has been supplied by, a **third party** and treated as confidential, the PIO shall **within five days** of the request give **written notice** to the third party, inviting a submission (written or oral) on whether the information should be disclosed. **Proviso:** except for trade or commercial secrets protected by law, disclosure may be allowed if the **public interest** in disclosure outweighs any harm or injury to the third party's interests.

(2) The third party shall be given, **within ten days** of receipt of the notice, the opportunity to make a representation.

(3) Notwithstanding Section 7, the PIO shall, **within 40 days** of receipt of the request (where third-party notice was given), decide whether to disclose, and give notice of the decision to the third party.

(4) The notice shall state that the third party is entitled to **appeal under Section 19** against the decision.

EXAM POINTER

Third-party clock: notice within **5 days**; third party's representation window **10 days**; PIO's decision within **40 days** of the original request (not 30). These three numbers — 5 / 10 / 40 — are a favourite.

Chapter III — The Central Information Commission

Section 12 — Constitution of the Central Information Commission

- (1) The **Central Government** shall, by notification in the Official Gazette, constitute the **Central Information Commission (CIC)**.
- (2) It shall consist of the **Chief Information Commissioner** and such number of **Central Information Commissioners, not exceeding ten**, as may be deemed necessary.
- (3) They shall be appointed by the **President** on the recommendation of a committee comprising — the **Prime Minister** (Chairperson); the **Leader of Opposition in the Lok Sabha**; and a **Union Cabinet Minister** nominated by the Prime Minister.
- (4) Members shall be persons of eminence in public life with wide knowledge and experience in **law, science and technology, social service, management, journalism, mass media or administration and governance**.
- (5) Members shall **not** be a Member of Parliament or of any State / UT Legislature, hold any other **office of profit**, be connected with any **political party**, or carry on any **business or profession**.
- (6) The **headquarters** of the CIC shall be at **Delhi** (offices elsewhere with prior Central Government approval).

LEGISLATIVE NOTE

Where there is no recognised Leader of Opposition, the leader of the single largest opposition group in the Lok Sabha is treated as such for the selection committee — a point settled in **Anjali Bhardwaj v. Union of India (2019)**, which also directed transparency in the selection process, timely filling of vacancies, and publication of selection criteria and shortlists.

Section 13 — Term of office and conditions of service (CIC / ICs)

VERIFIED UPDATE

This is the most-changed provision in the Act. The original Section 13 fixed a **five-year term (or until age 65, whichever earlier)**, barred re-appointment, and pegged salaries to the Chief Election Commissioner / Election Commissioners. The **RTI (Amendment) Act, 2019 (Act 24 of 2019, in force 24 October 2019)** deleted those particulars from the Act and empowered the **Central Government to prescribe** the term, salaries, allowances and service conditions by rule.

Current position under the RTI Rules, 2019 (notified 24 October 2019):

- **Term:** a fixed **three years** from the date of entering office (Rule 3 for the CIC / Central ICs).
- **Age ceiling:** the earlier **65-year ceiling has been removed** from the framework; appointment is governed by the fixed three-year term and the eligibility conditions.
- **Re-appointment:** now **permissible once** — an Information Commissioner may be re-appointed / elevated as Chief Information Commissioner (the absolute bar in the old Act is gone), subject to the prescribed conditions.
- **Salary (fixed, by rule):** Chief Information Commissioner **₹2,50,000** p.m.; Information Commissioner **₹2,25,000** p.m. If the appointee draws a **pension**, the pay is reduced by the pension amount (and by the pension-equivalent of other retirement benefits).

Transitional protection: Commissioners appointed **before** 24 October 2019 continue to be governed by the **pre-amendment** terms (five-year / age-65 tenure and the older salary parity) until they demit office.

(3) Before entering office, the CIC / IC makes and subscribes an **oath or affirmation** before the President (or a person appointed by the President) in the form in the **First Schedule**.

(4) A CIC / IC may **resign** by writing addressed to the **President**, or be **removed** under Section 14.

(5) Salaries, allowances and service conditions are as **prescribed by the Central Government** (now under the 2019 Rules) and shall not be varied to the member's disadvantage after appointment.

Section 14 — Removal of the CIC / IC

(1) The CIC or any IC shall be removed only by **order of the President** on the ground of **proved misbehaviour or incapacity**, after an inquiry by the **Supreme Court** on a reference by the President (the member remaining suspended / barred from office pending the reference if so ordered).

(2) The President may **suspend**, and if necessary prohibit from attending office, the member during the inquiry.

(3) The President may **by order remove** the CIC / IC who — (a) is adjudged an **insolvent**; (b) has been **convicted of an offence involving moral turpitude**; (c) engages, during the term, in **paid employment** outside the duties of office; (d) is, in the President's opinion, **unfit** to continue by reason of **infirmary of mind or body**; or (e) has acquired such **financial or other interest** as is likely to affect prejudicially the functions of office.

Chapter IV — The State Information Commission

Section 15 — Constitution of the State Information Commission

(1) Every **State Government** shall, by notification, constitute the '**(Name of State) Information Commission**'.

(2) It shall consist of the **State Chief Information Commissioner (SCIC)** and such number of **State Information Commissioners (SICs)**, **not exceeding ten**, as may be deemed necessary.

(3) They shall be appointed by the **Governor** on the recommendation of a committee comprising — the **Chief Minister** (Chairperson); the **Leader of Opposition in the Legislative Assembly**; and a **State Cabinet Minister** nominated by the Chief Minister.

(4)–(5) Eligibility (eminence in public life; the listed fields) and disqualifications (no MP/MLA, office of profit, political-party connection, business or profession) mirror Section 12.

(6) The **headquarters** of the SIC shall be at such place in the State as the State Government may specify.

Section 16 — Term of office and conditions of service (SCIC / SICs)

VERIFIED UPDATE

As with the CIC, the **RTI (Amendment) Act, 2019** removed the tenure, age-ceiling and salary particulars from Section 16 and left them to the **Central Government** (not the State) to prescribe by rule. Under the **RTI Rules, 2019**:

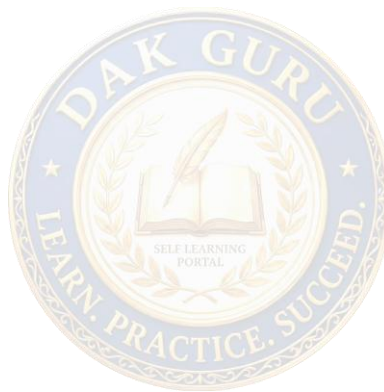
- **Term: three years** (Rule 12 for the SCIC / SICs).
- **Age-65 ceiling**: removed from the framework, as for the CIC.
- **Re-appointment: one** re-appointment / elevation permissible.
- **Salary (fixed, by rule)**: State Chief Information Commissioner **₹2,25,000** p.m.; State Information Commissioner **₹2,25,000** p.m. (the 2019 Rules fix both at ₹2,25,000, removing the earlier SCIC = Election Commissioner / SIC = Chief Secretary parity). Pension, if any, is deducted from pay.

Federalism note: that the **Central Government** now fixes the tenure and salary of **State Commissioners** was one of the most criticised features of the 2019 amendment.

(3) Oath / affirmation before the **Governor**; (4) resignation to the **Governor**; (5) salaries and service conditions as **prescribed by the Central Government**, not variable to disadvantage after appointment.

Section 17 — Removal of the SCIC / SIC

Removal is by order of the **Governor** on the ground of **proved misbehaviour or incapacity** after a **Supreme Court** inquiry on a reference by the Governor; the Governor may **suspend** the member pending inquiry. The further grounds for removal (insolvency, conviction for moral turpitude, paid employment, infirmity, prejudicial interest) are the **same as for the CIC** under Section 14(3).



Chapter V — Powers and Functions of the Commissions; Appeal and Penalties

Section 18 — Powers and functions of the Information Commissions

(1) It is the duty of the CIC / SIC to **receive and inquire into a complaint** from any person who —

- (a) could not submit a request because no PIO was appointed, or a CAPIO/SAPIO refused to accept or forward the application/appeal;
- (b) was **refused access** to information requested;
- (c) was **not given a response within the time limit**;
- (d) was required to pay a fee he/she considers **unreasonable**;
- (e) believes the information given is **incomplete, misleading or false**; or
- (f) has any other matter relating to requesting or obtaining access under this Act.

(2) Where satisfied that there are reasonable grounds, the Commission may **initiate an inquiry**.

(3) The Commission has, while inquiring, the **powers of a civil court** under the **Code of Civil Procedure, 1908** — summoning and enforcing attendance, requiring discovery and inspection of documents, receiving evidence on affidavit, requisitioning public records, and issuing summonses for examination of witnesses or documents.

(4) The Commission may **examine any record** to which the Act applies; no such record may be withheld from it on any ground.

EXAM POINTER

Distinguish **complaint under Section 18** (no appeal lies against its outcome to a higher RTI forum) from **second appeal under Section 19**. A complaint addresses systemic failures (no PIO, refusal to receive, unreasonable fee); a second appeal challenges a specific first-appellate decision. The Commission **cannot order supply of information as a relief in a Section 18 complaint** in the same way it can in a Section 19 appeal — a frequently-tested distinction.

Section 19 — Appeal

(1) **First appeal**. Any person who does not receive a decision within the specified time, or is aggrieved by a PIO's decision, may appeal **within 30 days** to an officer **senior in rank**

to the PIO (the **First Appellate Authority**) in the public authority; a delayed appeal may be admitted on sufficient cause.

(2) Where the appeal is against a Section 11 order to disclose **third-party** information, the third party may appeal **within 30 days** of the order.

(3) **Second appeal.** A second appeal lies to the **CIC / SIC within 90 days** from the date on which the first-appellate decision **should have been made or was actually received**; a delayed second appeal may be admitted on sufficient cause.

(4) Where the matter relates to **third-party** information, the Commission shall give the third party a **reasonable opportunity of being heard**.

VERIFIED UPDATE

Correcting a common mis-numbering. Two distinct rules are often confused:

- **Section 19(5) — onus of proof.** In any appeal, the **burden of proving that a denial was justified rests on the PIO** who denied the request. (Older notes frequently omit this and mislabel the disposal-time rule as 19(5).)
- **Section 19(6) — time for disposal.** An appeal shall be disposed of **within 30 days** of receipt, or **within an extended period not exceeding 45 days** in total from the date of filing, for reasons recorded in writing.

(7) The **decision of the Commission is binding**.

(8) In its decision the Commission has the power to — **require** the public authority to take steps to comply (provide information in a particular form; appoint a PIO; publish information or categories; make changes to records management, etc.); **require** the authority to **compensate** the complainant for any loss or detriment; **impose penalty** under Section 20; or **reject** the application. The Commission shall give notice of its decision, including any right of further appeal, to the complainant and the public authority.

LEGISLATIVE NOTE

The Act fixes a time limit (30 / 45 days) for the **First Appellate Authority** but prescribes **no statutory time limit** for the **Commission** to decide a second appeal. Several High Courts (e.g. Karnataka, Bombay) have, by judgment, directed Commissions to decide second appeals within about **45 days**, but this is a judicial direction, not a provision of the Act.

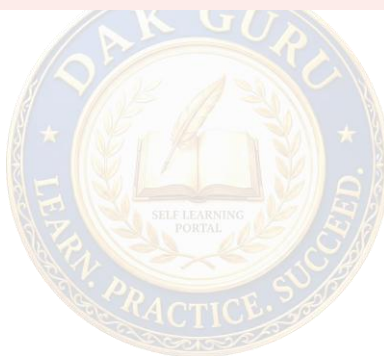
Section 20 — Penalties

(1) Where a PIO has, **without reasonable cause**, refused to receive an application, failed to furnish information within the time specified, **malafidely denied** a request, knowingly given **incorrect, incomplete or misleading** information, destroyed information that was the subject of a request, or obstructed in any manner, the Commission shall impose a penalty of **₹250 per day** until the application is received or information furnished, **subject to a maximum of ₹25,000**. The PIO must be given a **reasonable opportunity of being heard**, and the **burden of proving reasonable and diligent conduct rests on the PIO**.

(2) Where the PIO has acted in the manner above persistently and without reasonable cause, the Commission may also **recommend disciplinary action** against the PIO under the service rules applicable to them.

EXAM POINTER

Penalty arithmetic: **₹250 per day**, capped at **₹25,000** — i.e. the cap is reached at **100 days** of default. The penalty falls on the **PIO personally**, not the public authority.



Chapter VI — Miscellaneous

Sections 21–23 — Protection, overriding effect, bar of jurisdiction

Section 21 — Good faith. No suit, prosecution or other legal proceeding shall lie against any person for anything done **in good faith** under the Act or any rule made under it.

Section 22 — Overriding effect. The Act has effect **notwithstanding** anything inconsistent in the **Official Secrets Act, 1923**, or in any other law for the time being in force, or any instrument having effect by virtue of any such law.

Section 23 — Bar of jurisdiction. No court shall entertain any suit, application or proceeding in respect of any order made under this Act; such orders may be questioned **only by way of an appeal** under the Act.

Section 24 — Act not to apply to certain organisations

(1) The Act does **not apply** to the **intelligence and security organisations** specified in the **Second Schedule** (being Central-Government organisations), or to information furnished by them to the Government.

First proviso: information pertaining to allegations of **corruption** and **human rights violations** is **not excluded**.

Second proviso: where the information sought relates to **human rights violations**, it shall be provided **only after the approval of the Central Information Commission**, and (notwithstanding Section 7) **within 45 days** of receipt of the request.

(2) The **Central Government** may, by notification, **amend the Second Schedule** by adding or omitting any such organisation.

(3) Every such notification shall be **laid before each House of Parliament**.

(4) The Act does **not apply** to such **State** intelligence / security organisations as the **State Government** may, by notification, specify; every such notification shall be laid before the **State Legislature**.

EXAM POINTER

Two carve-outs make even a Second-Schedule body answerable: **(a) corruption** — no pre-approval needed, normal 30-day clock; **(b) human-rights violations** — needs **CIC (or SIC) approval** and the **45-day** window. Memorise the pairing: corruption = no approval; human rights = CIC approval + 45 days.

Sections 25–31 — Monitoring, programmes, rule-making, repeal

Section 25 — Monitoring and reporting. The CIC / SIC shall, after the end of each year, prepare a **report** on the implementation of the Act and forward it to the appropriate Government, which lays it before Parliament / the State Legislature. Each Ministry / Department collects and provides the requisite material to the Commission.

Section 26 — Appropriate Government programmes. The appropriate Government may develop and organise **educational programmes** to advance public understanding (especially for disadvantaged communities); encourage public authorities to participate; promote timely and effective dissemination; **train** PIOs and produce training materials; and compile and disseminate a **user guide** in the official language.

Section 27 — Power of the appropriate Government to make rules (application fee, cost of providing information, and — historically — salaries / allowances / terms; note these last are now governed by the RTI Rules, 2019).

Section 28 — Power of the competent authority to make rules for like matters within its sphere.

Section 29 — Laying of rules. Every rule made by the Central Government is laid before each House of Parliament (and State rules before the State Legislature).

Section 30 — Power to remove difficulties. The Central Government may, by order published in the Gazette, remove difficulties — **but not after the expiry of two years** from the commencement of the Act; every such order is laid before each House of Parliament.

Section 31 — Repeal. The **Freedom of Information Act, 2002** is repealed.

LEGISLATIVE NOTE

RTI Week is observed each year from **5 to 12 October**, marking the anniversary of the Act becoming fully operational on 12 October 2005.

Schedules to the Act

The First Schedule — Form of Oath or Affirmation

[See Sections 13(3) and 16(3)] — for the CIC / IC / SCIC / SIC.

“I,, having been appointed Chief Information Commissioner / Information Commissioner / State Chief Information Commissioner / State Information Commissioner, do **swear in the name of God / solemnly affirm** that I will bear **true faith and allegiance** to the **Constitution of India** as by law established, that I will uphold the **sovereignty and integrity of India**, that I will **duly and faithfully** and to the best of my ability, knowledge and judgment **perform the duties of my office without fear or favour, affection or ill-will**, and that I will uphold the **Constitution and the laws.**”

The Second Schedule — Exempt Intelligence & Security Organisations

[See Section 24(1)] — organisations established by the Central Government to which the Act does not apply (save for corruption / human-rights matters).

VERIFIED UPDATE

The Second Schedule is amended from time to time by Gazette notification under Section 24(2). Older booklets print an 18- or 22-entry list and frequently mis-include State-level units (e.g. “Special Branch CID, Andaman & Nicobar”), which belong to **State** notifications under Section 24(4), **not** the Central Second Schedule. The current Central Second Schedule stands at **twenty-six organisations**, set out below. **Always re-verify against the latest list on rti.gov.in before relying on it.**

#	Organisation	#	Organisation
1	Intelligence Bureau (IB)	14	Assam Rifles
2	Research & Analysis Wing (R&AW)	15	Sashastra Seema Bal (SSB)
3	Directorate of Revenue Intelligence (DRI)	16	Directorate General of Income-tax (Investigation)
4	Central Economic Intelligence Bureau (CEIB)	17	National Technical Research Organisation (NTRO)
5	Directorate of Enforcement (ED)	18	Financial Intelligence Unit, India (FIU-IND)

#	Organisation	#	Organisation
6	Narcotics Control Bureau (NCB)	19	Special Protection Group (SPG)
7	Aviation Research Centre (ARC)	20	Defence Research & Development Organisation (DRDO)
8	Special Frontier Force (SFF)	21	Border Roads Development Board (BRDB)
9	Border Security Force (BSF)	22	National Security Council Secretariat (NSCS)
10	Central Reserve Police Force (CRPF)	23	Central Bureau of Investigation (CBI) — added 2011
11	Indo-Tibetan Border Police (ITBP)	24	National Investigation Agency (NIA) — added 2011
12	Central Industrial Security Force (CISF)	25	National Intelligence Grid (NATGRID) — added 2011
13	National Security Guard (NSG)	26	National Crime Records Bureau (NCRB) — added 2018

LEGISLATIVE NOTE

Judicial gloss: although CBI is listed, the CIC and the Delhi High Court have repeatedly held that it **cannot withhold information relating to allegations of corruption** behind Section 24. Likewise, courts have read the **human-rights** carve-out (e.g. an employee's own service / promotion grievance against an exempt body) to require disclosure in defined situations, while declining an over-broad reading.

Part B — The Right to Information Rules, 2012

LEGISLATIVE NOTE

Two distinct sets of rules are in play and should not be conflated. The **RTI Rules, 2012** (in force 31 July 2012) govern **application fees, fees for information, and the second-appeal procedure before the CIC**. The separate **RTI (Term of Office, Salaries, Allowances ...) Rules, 2019** (in force 24 October 2019) govern the **tenure, salaries and service conditions of Information Commissioners** — these are reproduced in the ‘Service Conditions’ block at the end of this Part. The 2019 Rules **do not** replace the 2012 Rules on fees and appeals.

Rules 1–6 — Title, Definitions, Fees and Mode of Payment

Rule 1 — Short title and commencement

(1) These rules may be called the **Right to Information Rules, 2012**. (2) They came into force on **31 July 2012**.

Rule 2 — Definitions

“**Act**” = the Right to Information Act, 2005 (22 of 2005); “**Commission**” = the CIC under Section 12(1); “**First Appellate Authority**” = an officer in the public authority senior in rank to the CPIO to whom a Section 19(1) appeal lies; “**Registrar**” = an officer so designated, including Additional / Joint / Deputy Registrar; “**Section**” = a section of the Act.

Rule 3 — Application fee

An application under Section 6(1) shall be accompanied by a fee of **₹10**, by cash against proper receipt, or by demand draft / banker’s cheque / Indian Postal Order payable to the **Accounts Officer** of the public authority (or as otherwise provided).

Rule 4 — Fees for providing information

- **₹2** for each page (in A-4 or A-3 size) created or copied;
- **actual cost or price** of a copy in larger-size paper;
- **actual cost or price** for samples or models;
- **inspection of records**: no fee for the **first hour**, and **₹5** for each subsequent hour (or fraction).

Rule 5 — Fees for information in electronic / printed form

- ₹50 per CD / diskette / floppy for information provided in such media;
- for **printed** matter, the **price fixed** for the publication, or **₹2 per page** of photocopy for extracts.

BPL exemption: no fee under Rule 3 or Rule 4 is charged from a person **Below Poverty Line**, on production of a copy of the **BPL certificate** issued by the appropriate Government.

Rule 6 — Mode of payment

Fees may be paid by **cash** against receipt, **demand draft**, **banker's cheque**, **Indian Postal Order**, or **electronic means** where available, to the **Accounts Officer** of the public authority.

Rules 7–14 — Appeal Procedure before the Commission

Rule 7 — (Appeal to the Commission) / Nodal arrangements

An appeal to the Commission shall be in the prescribed manner with the required particulars (see Rule 8). For institutional support, every public authority designates a senior officer as **Nodal Officer**, and the Central Government appoints an officer (not below **Additional Secretary**) as **Secretary** to the Commission.

Rule 8 — Contents of the appeal / memorandum

A second appeal to the CIC may be made on **plain paper**, containing: the name and address of the **appellant** and of the **CPIO**; particulars of the **order(s)** (including number, if any) appealed against; the **brief facts** leading to the appeal; the **prayer or relief** sought; the **grounds** for the relief; **verification** by the appellant; and any other particular the Commission may require.

Rule 9 — Documents to accompany the appeal

Self-attested copies of: the **application** to the CPIO; the **CPIO's reply** (if any); the **first appeal** to the First Appellate Authority; the **FAA's order** (if any); other documents relied upon; and an **index** of the documents referred to.

Rule 10 — Return of appeal / procedure on hearing

An appeal may be **returned** to the appellant to remove deficiencies (e.g. missing documents under Rule 9) and re-file complete. The Commission may, after recording

reasons and giving an **opportunity of being heard**, **dismiss** an appeal it considers unfit to proceed; **no appeal is dismissed merely for not being in the specified format**. The Commission proceeds where the FAA has made a final order, or where **no order has been made and 45 days have elapsed** since the first appeal was preferred. In deciding, the Commission may receive oral / written evidence on oath, inspect documents, hear the CPIO / FAA / third party, and receive evidence on affidavit.

Rules 11–14 — Hearing logistics

- **Rule 11 — Presence of the appellant:** informed of the hearing date **at least 15 days** in advance; may appear in person or through an authorised representative, including by video-conference where allowed.
- **Rule 12 — Public authority's presentation:** the public authority may authorise any officer to present its case.
- **Rule 13 — Service of notice:** by registered post, speed post, fax or e-mail, or through the public authority's **Nodal Officer**.
- **Rule 14 — Withdrawal:** the appellant may withdraw the appeal at any time before a final decision is taken.

Service Conditions of Information Commissioners (RTI Rules, 2019)

VERIFIED UPDATE

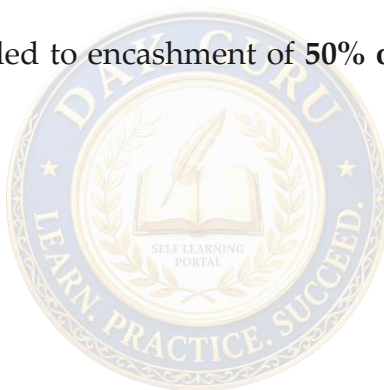
These provisions are reproduced from the **RTI (Term of Office, Salaries, Allowances and Other Terms and Conditions of Service ...) Rules, 2019** (in force **24 October 2019**), which superseded the earlier salary parity. They apply to Commissioners **appointed on or after** that date; earlier appointees retain their pre-2019 terms.

Term and salary

- **Term: three years** from entering office, for the CIC, IC, SCIC and SIC (Rules 3 and 12).
- **Salary (fixed):** Chief Information Commissioner **₹2,50,000** p.m.; Information Commissioner / State Chief Information Commissioner / State Information Commissioner **₹2,25,000** p.m. — reduced by any **pension** (and pension-equivalent of other retirement benefits) drawn.

Other conditions

- **Leave-sanctioning authority:** the **President** for the CIC; the **Governor** for the SCIC; the **CIC / SCIC** for an IC / SIC respectively.
- **Medical:** treatment and hospital facilities as under **CGHS**; where CGHS is not operational, the **Central Services (Medical Attendance) Rules, 1944** apply.
- **Accommodation:** use of an official residence of the admissible type, subject to availability, on payment of the prescribed licence fee; if not provided, **House Rent Allowance** at the rate admissible to an officer of equivalent pay.
- **Deemed retirement:** a serving Government officer appointed to the Commission is **deemed to have retired** from the parent service.
- **Allowances:** entitled to **DA, TA, LTC and Daily Allowance** as admissible to an officer holding a post carrying the same pay in the Central / State Government; leave as per such equivalence.
- **Leave encashment:** entitled to encashment of **50% of earned leave** to credit at the completion of tenure.



Ready Reference

Key Statutory Timelines & Limits

Event / Action	Time Limit	Provision
Standard response by PIO	30 days	S. 7(1)
Life or liberty of a person	48 hours	Proviso to S. 7(1)
Add-on where routed via ACPIO/ACAPIO	+ 5 days	S. 5(2)
Transfer of application to correct PA	Within 5 days	S. 6(3)
Third-party notice by PIO	Within 5 days	S. 11(1)
Third party's representation window	10 days	S. 11(2)
PIO's decision where 3rd-party notice given	Within 40 days	S. 11(3)
First appeal — filing	30 days from decision / due date	S. 19(1)
First appeal — disposal by FAA	30 days; max 45 days (reasons)	S. 19(6)
Second appeal — filing (CIC/SIC)	90 days	S. 19(3)
Human-rights info from exempt body	45 days (after CIC approval)	2nd proviso, S. 24(1)
Commission may proceed if FAA silent	After 45 days from first appeal	Rule 10, RTI Rules 2012
Penalty on PIO for delay	₹250/day, max ₹25,000	S. 20(1)
Removal of difficulties — outer limit	2 years from commencement	S. 30

Fees, Charges & Fixed Salaries

Item	Amount / Limit	Authority
RTI application fee	₹10	Rule 3, RTI Rules 2012
Photocopy (A-4 / A-3), per page	₹2	Rule 4
Larger-size paper / sample / model	Actual cost	Rule 4

Item	Amount / Limit	Authority
Inspection — first hour	Free	Rule 4
Inspection — each subsequent hour	₹5	Rule 4
CD / diskette / floppy, per unit	₹50	Rule 5
BPL applicant	No fee (with certificate)	S. 7(5)/Rule 5
Where time limit breached	Free of charge	S. 7(6)
Penalty on PIO, per day	₹250	S. 20(1)
Maximum penalty on PIO	₹25,000	S. 20(1)
Chief Information Commissioner — pay	₹2,50,000 p.m.	RTI Rules 2019
IC / SCIC / SIC — pay	₹2,25,000 p.m.	RTI Rules 2019

At-a-Glance: The RTI Architecture

Feature	Central level	State level
Commission	Central Information Commission	State Information Commission
Constituted by	Central Government (S. 12)	State Government (S. 15)
Composition	CIC + up to 10 ICs	SCIC + up to 10 SICs
Appointed by	President	Governor
Selection committee chair	Prime Minister	Chief Minister
Other committee members	LoP (Lok Sabha) + Union Cabinet Minister	LoP (Assembly) + State Cabinet Minister
Headquarters	Delhi	As specified by the State
Term (RTI Rules 2019)	3 years	3 years
Pay — Chief (Rules 2019)	₹2,50,000 p.m.	₹2,25,000 p.m.
Pay — Member (Rules 2019)	₹2,25,000 p.m.	₹2,25,000 p.m.
Removal	President (after SC inquiry)	Governor (after SC inquiry)

Primary Sources Relied Upon

The provisions and updates in this booklet were verified against the following primary and authoritative sources (status as on 24 June 2026):

- **The Right to Information Act, 2005** (Act No. 22 of 2005) — bare Act, rti.gov.in / DoPT.
- **The Right to Information (Amendment) Act, 2019** (Act No. 24 of 2019), in force 24 October 2019.
- **The RTI (Term of Office, Salaries, Allowances and Other Terms and Conditions of Service ...) Rules, 2019**, Gazette notification dated 24 October 2019.
- **The Right to Information Rules, 2012**, in force 31 July 2012.
- **The Digital Personal Data Protection Act, 2023** — Section 44(3), brought into force with the **DPDP Rules, 2025** on 14 November 2025 (Gazette of India).
- **The Jammu and Kashmir Reorganisation Act, 2019** (extension of the RTI Act to the whole of India w.e.f. 31 October 2019).
- DoPT office memoranda on proactive (suo motu) disclosure and First Appellate Authority guidance; Second Schedule notifications under Section 24 (latest list on rti.gov.in).

LEGISLATIVE NOTE

Pending litigation to watch: the constitutional challenge to **Section 44(3) of the DPDP Act, 2023** (and the consequent amendment of Section 8(1)(j)) is before the Supreme Court. Should the Court stay or read down the provision, the personal-information exemption position stated above would change — re-verify before the examination cycle.